

party breached the settlement agreement “are not relevant to the entry of judgment pursuant to section 664.6.” (*Machado v. Myers* (2019) 39 Cal.App.5th 779, 796.)

I. Analysis

Here, there appears to be no dispute concerning the existence of an agreement or the terms. That defendants are attempting to comply does not negate the merits of the motion. The Court does not, and cannot, make substantive determinations as to whether any party to the settlement has breached that agreement.

In reviewing Exhibit A to plaintiff’s counsel’s declaration, the Court finds that a valid settlement agreement was entered into between the parties “in a writing signed by the parties outside of the presence of the court,” and that such settlement agreement is sufficiently definitive to be enforceable. Accordingly, the Court grants the motion to enter judgment “pursuant to the terms of” the agreement.

**Law & Motion
Add On 3**

**17. 9:00 AM CASE NUMBER: C23-02945
CASE NAME: ARIANA MOORE VS. DOES 1-30, INCLUSIVE
HEARING ON SUMMARY MOTION JUDGEMENT HEARING / CONT'D FROM 4/24/26 PER TR
FILED BY: BIKRAMJIT S. RANDHAWA AS TRUSTEE OF THE RANDHAWA REVOCABLE TRUST, DATED
OCTOBER**

TENTATIVE RULING:

Before the Court is a motion for summary adjudication, or in the alternative summary adjudication of issues filed by defendants Bikram Randhawa, Schlatter Associates, Inc., Brigitte Schlatter, Bikramjit S. Randhawa as Trustee of the Randhawa Revocable Trust Dated October 2, 2015, and Dalbir K. Randhawa as Trustee of the Randhawa Revocable Trust Dated October 2, 2015. For the reasons set forth, the hearing on the motion is continued to **9:00 a.m. on May**

29, 2026 for supplemental briefing as set forth below.

Introduction

The moving parties are defendants who were added as "Doe Defendants" after Plaintiff's complaint was filed. All of the eleven causes of action in the complaint are alleged against all defendants.

There is no dispute that defendant Randhawa purchased the Property subject to the Lease Agreement, and that defendants the Randhawas through their Trust are the current owners of the Property and in effect successors under the Lease Agreement. (Defs. Sep. Stmt., UMFs 1, 2, 5, and Pl. Resp. to UMFs 1, 2, 5.) There also appears to be no dispute based on the evidence that defendant Schlatter and her company, defendant Schlatter Associates, Inc., acted as property managers and agents for the Randhawas as the property owners and landlords through their Trust. (Pl. Sep. Stmt. of Undisp. Mat. Facts [Addl. Facts] 28; Schlatter Decl. ¶¶ 2, 3, 5.)

A. Supplemental Briefing on Issues 1, 3 and 4

Issue 1 of the motion addresses in part the second cause of action for contractual breach of the implied warranty of habitability. Issues 3 and 4 address the third cause of action for breach of contract. These causes of action are founded on a lease agreement, a copy of which Plaintiff attaches as Exhibit A to her complaint. (Comp. ¶ 9 and Exh. A.) The Lease Agreement, Exhibit A, is between Plaintiff and Megem, LLC.

The parties' briefing cites the case *Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903. That case addresses a number of different claims by a tenant against a landlord and property manager/agent for the landlord. The Court held that the tenant could state tort claims against the landlord's property management agents related to habitability but not contract claims since the agents were not parties to the contract with the tenant. (*Id.* at 928-930 ["We conclude that although the agent defendants may not be held liable under the implied warranty theory, causes of action may be stated against them in tort. Since the suit for breach of the implied warranty is essentially a contractual one, the trial court correctly ruled the agents could not be held liable on the breach of warranty because an agent is ordinarily not liable on the contract when he acts"])

on behalf of a disclosed principal [citation omitted]." (Emphasis added.)).) (See also *Aljabban v. Fontana Indoor Swap Meet, Inc.* (2020) 54 Cal.App.5th 482, 509 [holding there was no basis to hold president of defendant corporation liable for breach of contract to which the corporation was a party, stating "[A]lthough Aljabban named Shapiro as a defendant in the breach of contract cause of action, the vendor's permit was entered into by FISM as a corporate entity. Absent a successful attempt to pierce FISM's corporate veil—which Aljabban did not attempt to undertake at trial—Shapiro's role as FISM's president does not subject him to liability for FISM's breach of contract. [Citation omitted.]"; *Egan v. Mut. of Omaha Ins. Co.* (1979) 24 Cal.3d 809, 824 [reversing judgment against individual agents of insurance company for breach of the implied covenant of good faith and fair dealing, stating "Segal and McEachen acted as Mutual's agents. As such, they are not parties to the insurance contract and not subject to the implied covenant. Because the only ground for imposing liability on either Segal or McEachen is breach of that promise, the judgments against them as individuals cannot stand. [Citation omitted.]".])

The parties did not brief whether the second and third causes of action fail against Schlatter and Schlatter Associates because they are not parties to the contract on which those claims are founded. Nevertheless, the *Stoiber* decision cited in the briefing suggests that, based on the undisputed material facts, summary adjudication of those causes of action in favor of defendants Schlatter and Schlatter Associates may be warranted. Because the parties did not address the implications of the *Stoiber* decision for liability by Schlatter and Schlatter Associates as non-parties to the Lease Agreement and as mere agents for the landlord, the Court will continue the hearing to provide the parties an opportunity to address this legal issue pursuant to *Juge v. County of Sacramento* (1993) 12 Cal.App.4th 59. In *Juge*, the Court explained:

Consistent with the purpose of the summary judgment statute, we conclude that the trial court has the inherent power to grant summary judgment on a ground not explicitly tendered by the moving party **when the parties' separate statements of material facts and the evidence in support thereof**

demonstrate the absence of a triable issue of material fact put in issue by the pleadings and negate the opponent's claim as a matter of law. (*Cf. Cottle v. Superior Court* (1992) 3 Cal.App.4th 1367, 1377; *Weiss v. Chevron, U.S.A., Inc.* (1988) 204 Cal.App.3d 1094, 1098-1099; *Johnson v. Banducci* (1963) 212 Cal.App.2d 254, 260; *see also Bauguess v. Paine* (1978) 22 Cal.3d 626, 635.)

However, when the trial court grants a summary judgment motion on a ground of law not explicitly tendered by the moving party, due process of law requires that the party opposing the motion must be provided an opportunity to respond to the ground of law identified by the court and must be given a chance to show there is a triable issue of fact material to said ground of law.

Otherwise, a party which could have shown a triable issue of material fact put in issue by the complaint or answer but neglected to do so because the point was not asserted by the moving party as a ground for summary judgment would be deprived unjustly of the chance to demonstrate the existence of a triable issue of material fact which requires the process of trial.

(*Id.* at 70-71 [emphasis added].) (*See also Castillo v. Glenair, Inc.* (2018) 23 Cal.App.5th 262, 283 [trial court continued the summary judgment hearing to provide plaintiff additional time to address issue of agency first raised in defendant's reply brief which sufficiently protected plaintiff's due process rights].)

B. Supplemental Briefing on Issues 8, 9, 10, 11 and 12

These issues address Plaintiff's eighth, ninth, and eleventh causes of action which allege violations of Civil Code §§ 1946.2 (just cause eviction), 1947.12 (rent control statute governing rent increases), and 1942.5 (retaliation against tenant). Two of the statutes impose restrictions on "an owner of residential real

property." (Civ. Code §§ 1946.2(a) and 1947.12(a)(1).) Civil Code § 1942.5(a) restricts retaliatory conduct by "the lessor" against a lessee under the circumstances described in the statute. It is undisputed based on the facts that the Randhawas through their Trust are the owners of the Property and the lessors of Plaintiff's unit, and it appears to be undisputed that Schlatter and Schlatter Associates are property managers, not owners or lessors.

The Court requests supplemental briefing as to whether defendants Schlatter and Schlatter Associates, as property managers, have any liability for alleged violations of Civil Code §§ 1946.2, 1947.12, and 1942.5 in the eighth, ninth, and eleventh causes of action of the complaint when they are neither owners nor lessors of the Property. For the same reasons as Issues 1, 3, and 4, it appears that the undisputed material facts may indicate that defendants Schlatter and Schlatter Associates cannot be held liable as a matter of law for violations of the stated Civil Code statutes on which the eighth, ninth and eleventh causes of action are based. Supplemental briefing is therefore warranted under *Juge, supra*.

Supplemental Briefing Schedule

On or before May 8, 2026, the parties shall file and serve concurrently a supplemental brief not longer than seven pages together with any additional facts and evidence they contend are material to the issues for which the Court has requested supplemental briefing. **On or before May 15, 2026**, the parties may file and serve concurrently supplemental response briefs not longer than five pages addressing the other parties' supplemental briefing, and responses to any additional facts and/or evidence presented with the May 8, 2026 supplemental briefing. **The hearing is continued to May 29, 2026 at 9:00 a.m. in Dept. 32.**